

Amendment No. 1 to SB0955

Crowe
Signature of Sponsor

AMEND Senate Bill No. 955*

House Bill No. 1044

by deleting subsections (b) and (c) from § 63-1-903 in SECTION 1 and substituting:

(b) The exercise of the right described in subsection (a) must not be used against a healthcare provider that exercises such right as the basis for:

- (1) A civil cause of action;
- (2) A criminal prosecution; or
- (3) Discriminatory action.

(c) Subsections (a) and (b) do not apply to:

(1) Procedures, treatments, or services governed by federal law, including the Emergency Medical Treatment and Active Labor Act (EMTALA), 42 U.S.C. § 1395dd;

(2) The right of a religious healthcare provider to make employment, staffing, contracting, administrative, and admitting privilege decisions consistent with its religious beliefs if it holds itself out to the public as religious and has internal operating policies or procedures that implement its religious purpose or mission; or

(3) A healthcare professional or healthcare institution when performing healthcare procedures, treatments, or services for an individual who is in imminent danger of harming themselves or others.

AND FURTHER AMEND by deleting subsection (c) from § 63-1-905 in SECTION 1.